

PASSED

CHICKASAW TRIBAL LEGISLATURE

**Permanent Resolution Number 19-010
Amendments to Title 8, Chapter 2, Section 8-205
of the Chickasaw Nation Code
(Challenge to Candidacy)**

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the Office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, upon review of Title 8, Chapter 2, Section 8-205 of the Chickasaw Nation Code, the Legislature deems it necessary to amend said Section in order to promote clarity and accuracy of content.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby approves of the following amendments to Title 8, Chapter 2, Section 8-205, Paragraph A., of the Chickasaw Nation Code. Deleted language is shown as stricken and additional language is shown as shaded. All other Sections of Title 8, Chapter 2 are to remain the same and are not affected by this resolution.

SECTION 8-205 CHALLENGE TO CANDIDACY.

A. A candidate may challenge the eligibility of another candidate in writing, specifically naming the candidate and the district and stating the cause of the challenge. Such challenges must be filed no later than two (2) working days after the closing of the filing period for the candidates. A candidate being challenged shall have three (3) working days from the day of receipt of notice of the challenge to file ~~an appeal~~ a response to the challenge; provided, however, that other time frames for filing of challenges and ~~counter appeals~~ responses may be stipulated by the Legislature for special elections. Notice of a challenge shall be sent to the challenged candidate by certified mail, return receipt requested or may be delivered in person. If notice of challenge is hand delivered, the person who completes delivery will file a statement which includes the details of delivery, including date, time and location.

Permanent Resolution 19-010

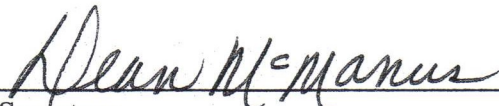
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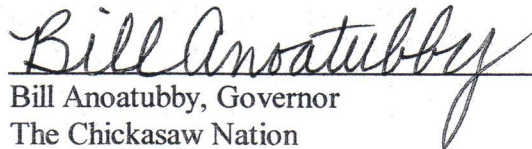
Executed in regular session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on February 15, 2002, by a vote of 12 ayes, 0 nays, 0 abstentions.



Chairperson
Chickasaw Tribal Legislature



Secretary
Chickasaw Tribal Legislature

Concur: 

Bill Anoatubby, Governor
The Chickasaw Nation

Date: FEB 15 2002

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Explanation: This resolution approves amending Title 8, Chapter 2, Section 8-205, Paragraph A., of the Chickasaw Nation Code. The amendments will change the words "appeal" to "response" and "counter appeals" to "responses" in Paragraph A to promote clarity and accuracy of content.

Requested By: Mooniene Ogee, Chairperson
Election Rules & Regulations Ad Hoc Committee

Presented By: Mooniene Ogee, Chairperson
Election Rules & Regulations Ad Hoc Committee